

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #11	CCRB Case #: 201805008	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/16/2018 6:30 PM	Location of Incident: Prospect Park and the 78th Precinct stationhouse	18 Mo. SOL 12/16/2019	Precinct: 78		
Date/Time CV Reported Sat, 06/16/2018 9:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/22/2018 11:00 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Colbert Martin	00000	925674	078 PCT
2. An officer			
3. SGT Robert Pumilia	03646	947368	078 PCT
4. DTS Anthony Matos	05380	925688	078 PCT
5. SGT Joseph Runfola	3526	949588	078 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Giovanni Calderon	01638	948663	076 PCT
2. POF Denisse Pacheco	00800	949434	078 PCT
3. POF Nyasha Romeo	23727	963244	078 PCT
4. POM Martinez Francois	05150	931676	078 PCT
5. SSA Angelo Pirozzi	03390	919567	078 PCT
6. CPT Frantz Souffrant	00000	939510	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Force: Inside of Prospect Park in Brooklyn, an officer used physical force against § 87(2)(b)	A . Officer(s) Unidentified
B . LT Colbert Martin	Abuse: Inside of Prospect Park in Brooklyn, Lieutenant Colbert Martin did not process § 87(2)(b)'s complaint regarding an officer.	B . Substantiated
C . DTS Anthony Matos	Discourtesy: Inside of Prospect Park in Brooklyn, Detective Anthony Matos spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . SGT Joseph Runfola	Abuse: At the 78th Precinct stationhouse, Sergeant Joseph Runfola did not obtain medical treatment for § 87(2)(b)	D . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On June 16, 2018, § 87(2)(b) filed this complaint with IAB by phone. The complaint was received at the CCRB on June 22, 2018.

On June 16, 2018, at approximately 6:30 p.m., inside of Prospect Park in Brooklyn, an alleged officer used physical force against § 87(2)(b) (**Allegation A: Force, officer unidentified**). Lieutenant Colbert Martin of the 78th Precinct did not process § 87(2)(b)'s complaint regarding an officer (**Allegation B: Abuse of Authority, substantiated**). Inside of Prospect Park in Brooklyn, Detective Anthony Matos of the 78th Precinct at the time of the incident spoke discourteously to § 87(2)(b) (**Allegation C: Abuse of Authority, unsubstantiated**). At the 78th Precinct stationhouse, Sergeant Joseph Runfola, also of the 78th Precinct, did not obtain medical treatment for § 87(2)(b) (**Allegation D: Abuse of Authority, § 87(2)(g)**

§ 87(4-b) § 87(2)(g)

This incident did not result in any arrests or summonses.

There is no known video footage of this incident.

Findings and Recommendations

Allegation (A) Force: Inside of Prospect Park in Brooklyn, an officer used physical force against § 87(2)(b)

Allegation (B) Abuse of Authority: Inside of Prospect Park in Brooklyn, Lieutenant Colbert Martin did not process § 87(2)(b)'s complaint regarding an officer.

On July 16, 2018, at approximately 6:30 p.m., § 87(2)(b) was at a playground in Prospect Park with her friend, § 87(2)(b) and their respective daughters, ages § 87(2)(b) § 87(2)(b)'s daughter fell on the playground and another child on the playground laughed at her. In consoling her, § 87(2)(b) said, "Don't worry. She doesn't have any manners. She's just being a little cunt." The other child repeated what § 87(2)(b) said to her mother. The child's mother and three other women approached § 87(2)(b) and yelled at her for calling the child a "cunt."

According to § 87(2)(b) (BR 04), the child's mother hit § 87(2)(b) with her left hand near § 87(2)(b)'s right eye and temple and screamed, "What did you say about my daughter?" § 87(2)(b) told § 87(2)(b) to call the police. The child's mother responded, "Call the police. I'm NYPD." The child's mother, hereafter referred to as the alleged officer, slapped § 87(2)(b) an additional two times in the face. The other women pulled the alleged officer away from the playground area.

§ 87(2)(b) called 911. § 87(2)(b) and the children followed the alleged officer to provide her description to the dispatcher. While doing so, § 87(2)(b) saw Lieutenant Colbert Martin and Detective Anthony Matos standing near the Prospect Park Bandshell.

§ 87(2)(b) walked up to Lt. Martin and Det. Matos and told them what happened, including that she had called a child a "cunt," that the child's mother had slapped her, and had claimed to be a police officer. § 87(2)(b) pointed out the alleged officer, who was standing approximately four car lengths away, and told the officers she wanted a report documenting the incident. § 87(2)(b) did not specify to Lt. Martin and Det. Matos whether she wanted to file a criminal complaint (UF-61) or a civilian complaint (UF-245); § 87(2)(b) wanted some kind of report filed regardless of the alleged officer's status as a police officer.

Lt. Martin approached the alleged officer and spoke to her for approximately seven minutes before returning to § 87(2)(b) § 87(2)(b) did not hear their conversation. Lt. Martin told § 87(2)(b) that if she wanted a report taken, she would also be listed on the report and that a report was not "going to do anything." § 87(2)(b) reiterated to Lt. Martin that the alleged officer

identified herself as a police officer. Lt. Martin responded, “Don’t worry about that. I’ll take care of that later.” § 87(2)(b) insisted that she wanted a report, to which Lt. Martin replied, “I’m going to write on there that you called the girl a name,” and, “You don’t have injuries.” § 87(2)(b) pointed to a red bump near her eye, but Lt. Martin shrugged and said, “I don’t see anything.”

§ 87(2)(b) and the children then left the park because Lt. Martin was not helping § 87(2)(b) § 87(2)(b) never learned the alleged officer’s name.

After § 87(2)(b) left Prospect Park, she called IAB at 9:30 p.m. and left a voicemail stating that Lt. Martin refused to take a report. § 87(2)(b) then went to the 76th Precinct stationhouse, where she spoke to Sergeant Giovanni Calderon about the incident and informed him that she called IAB. IAB contacted § 87(2)(b) and she informed them that she was currently at the 76th Precinct stationhouse. IAB told § 87(2)(b) to tell the officers at the 76th Precinct what happened and that IAB would call her back in an hour. Sgt. Calderon then told § 87(2)(b) that he spoke with his captain, who arranged for § 87(2)(b) to have a police escort to the 78th Precinct, as that was the command to which Lt. Martin was assigned.

At the 78th Precinct stationhouse, Captain Frantz Souffrant interviewed § 87(2)(b) § 87(2)(b) explained that her concern was that if the alleged officer was in fact an officer, Lt. Martin is covering it up, and if the alleged officer was not in fact an officer, Lt. Martin still refused to take a report. Captain Souffrant told her he did not believe the alleged officer was in fact a police officer. Ultimately, Police Officer Denisse Pacheco filed a UF-61 (BR 11) for harassment at Captain Souffrant’s instruction. The alleged officer is listed on the report as a black female, but neither her name nor any other identifying information is listed. Lt. Martin is listed as the supervisor on scene.

§ 87(2)(g)
§ 87(2)(b) said that when § 87(2)(b) told her to call 911, the alleged officer said, “Call them. I am a police officer,” without specifying that she was a member of the NYPD.

Lt. Martin (BR 06) said he was standing by his vehicle near the Prospect Park Bandshell supervising officers assigned to posts for a BRIC concert occurring in the park when Det. Matos and Sergeant Robert Pumilia, also of the 78th Precinct, approached him. Det. Matos told Lt. Martin that § 87(2)(b) was claiming she had been assaulted by an alleged officer. Lt. Martin then approached § 87(2)(b) who was standing near the entrance to the BRIC concert with § 87(2)(b) and a child. § 87(2)(b) informed Lt. Martin that she wanted a report filed against a woman who had hit her and identified herself as “MOS.” Lt. Martin did not see any injuries on § 87(2)(b) consistent with being slapped in the face.

Lt. Martin approached the alleged police officer, who was standing near Det. Matos, and asked, “Are you MOS?” The alleged officer said, “No.” Lt. Martin did not obtain any identifying information for the alleged officer, as he was only conducting a “preliminary investigation.” Lt. Martin did not conduct further investigation at any later time to determine if the alleged officer was in fact a police officer, as he did not believe impersonation of a police officer or any other crime had occurred. When Lt. Martin came back to § 87(2)(b) § 87(2)(b) reiterated that she wanted a report. Lt. Martin responded that § 87(2)(b) did not have injuries consistent with her account of the incident, no crime had occurred, and the situation could be mediated between two parents. § 87(2)(b) then walked away. Because Lt. Martin did not believe that § 87(2)(b) was assaulted or harassed and had no injuries consistent with her complaint, he did not think filing a UF-61 or other report of the incident was necessary.

Det. Matos (BR 07) said that § 87(2)(b) approached him and said she was assaulted by a female who “poked” her in the head. Det. Matos did not remember if § 87(2)(b) said that the

female who assaulted her identified herself as a police officer. Det. Matos did not see any injuries on § 87(2)(b). Det. Matos spoke to the female, who explained that she was involved in a verbal dispute with § 87(2)(b) because § 87(2)(b) called her child a “cunt.” The female denied that the dispute became physical. Det. Matos did not obtain the woman’s name or other pedigree information because he “did not get to that point” in the investigation. When Det. Matos returned to where § 87(2)(b) was standing, Lt. Martin told him to return to his post, which he did. Det. Matos had no further interaction with § 87(2)(b).

Sgt. Pumilia (BR 08) said he received a radio run regarding an assault at the Bandshell in Prospect Park. Sgt. Pumilia did not remember any other information provided over the radio. By the time Sgt. Pumilia arrived at § 87(2)(b)’s location, he saw Lt. Martin and Lt. Martin’s operator speaking with § 87(2)(b). § 87(2)(b) told Lt. Martin that a woman “got in [her] face” and yelled at her. § 87(2)(b) never said that the woman identified herself as a police officer or that she was assaulted. Sgt. Pumilia did not ask any questions as to why the call came over as an assault. Sgt. Pumilia did not speak to the woman that yelled at § 87(2)(b) and did not know if any pedigree information was gathered or if a further investigation was conducted.

The EVENT (BR 08) specified that a woman was assaulted by a female who claimed she was a police officer. The female was described as heavyset and wearing a purple shirt and jean capris.

In the audio of § 87(2)(b)’s 911 call (BR 09-10), § 87(2)(b) reports that § 87(2)(b) was assaulted inside Prospect Park by a woman who said she was “on the job” and “a cop.” At the 00:09 second mark, a female voice in the background repeatedly says, “I’m a cop.”

§ 87(2)(b)’s complaint was concurrently investigated by IAB. Captain Brian White of Patrol Borough Brooklyn South Investigations Unit was unable to determine the identity of the alleged police officer. As Lt. Martin did not obtain the alleged officer’s name and failed to prepare a complaint report, Captain White determined that Lt. Martin will receive command discipline (BR 21).

Officers have a duty “to record and initiate investigation of complaints from civilians alleging misconduct by uniformed members of the service.” Patrol Guide Procedure 207-31 (BR 16).

When a uniformed member of service is witness to an off-duty incident, the uniformed officer is tasked with facilitating the preliminary investigation of the off-duty incident. Patrol supervisors must respond to the scene, assess the situation, and notify the desk officer of available details. Patrol Guide Procedure 212-32 (BR 22).

All members of the service have an absolute duty to report any corruption or other misconduct, or allegation of corruption or other misconduct, of which they become aware. Patrol Guide Procedure 207-21 (BR 15).

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g)

As such, it is recommended that **Allegation B** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **officer unidentified**.

Allegation (C) Discourtesy: Inside of Prospect Park in Brooklyn, Detective Anthony Matos spoke discourteously to § 87(2)(b)

According to § 87(2)(b) (BR 04), when she was explaining what occurred at the playground to Lt. Martin and Det. Matos, Det. Matos said that although it was a bad situation, he would have acted similarly if some said that about his child (meaning calling his child a “cunt”).

§ 87(2)(b) (BR 05) was consistent with § 87(2)(b) that Det. Matos made the above statement.

Det. Matos (BR 27) was re-interviewed on November 1, 2018 in regard to this allegation. Det. Matos did not remember the specifics of the conversation he had when § 87(2)(b) approached him other than § 87(2)(b) pointing out a woman that assaulted her. Det. Matos denied making the above the statement, using any other discourteous language, or hearing any other officer do so.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: At the 78th Precinct stationhouse, Sergeant Joseph Runfola did not obtain medical treatment for § 87(2)(b)

As mentioned above, § 87(2)(b) contacted IAB at 9:30 p.m. after leaving the park and left a voicemail. IAB returned § 87(2)(b)'s call at 1:58 a.m. on Sunday, June 17, 2018 (BR 24-25), after § 87(2)(b) had returned home. § 87(2)(b) reported to IAB that Lt. Martin did not ask § 87(2)(b) if she wanted medical attention and did not “help” her obtain medical attention on scene. § 87(2)(b) did not specifically state to IAB that she asked Lt. Martin for medical attention at the scene. § 87(2)(b) did not allege that she had requested medical attention from any other officer or that medical attention had been denied to her.

However, in both § 87(2)(b)'s phone statement (BR 26) and sworn statement (BR 04) to the CCRB, she said that she never asked for medical attention while inside Prospect Park. § 87(2)(b) instead said that she, § 87(2)(b) and the children went to the 76th Precinct stationhouse to report the incident. Officers at the 76th Precinct arranged for § 87(2)(b) to have a police escort to the 78th Precinct stationhouse. The officers notified the 78th Precinct that § 87(2)(b) would be coming.

Upon arriving at the 78th Precinct stationhouse, Sgt. Runfola, whose name § 87(2)(b) read from his uniform and provided to the CCRB, approached § 87(2)(b). A captain, identified by the investigation as Captain Souffrant, also approached § 87(2)(b). § 87(2)(b) explained to Captain Souffrant she did not want to get an officer in trouble, as she has family members and friends who are police officers, but felt that Lt. Martin was covering up that the alleged police officer was in fact an officer by refusing to take a report. Captain Souffrant said, "We don't believe she's a police officer," but then instructed PO Pacheco to take a report and walked away.

§ 87(2)(b) asked Sgt. Runfola, "Can I be seen by medical?" to which he responded, "You want to be seen by medical? Okay. I'll call an ambulance." An ambulance never arrived and § 87(2)(b) never received medical attention.

PO Pacheco took a report for § 87(2)(b) § 87(2)(b) and the children left the stationhouse before midnight.

§ 87(2)(b) provided a photograph of her face taken the same day as the incident at 8:02 p.m., which showed a small bump near the corner of § 87(2)(b)'s right eye (BR 20).

§ 87(2)(b) did not seek medical attention on her own.

During § 87(2)(b)'s phone call with 911 while she was still in Prospect Park (BR 09-10), she told the 911 dispatcher that § 87(2)(b) did not need an ambulance or otherwise require medical attention. In her statements to the CCRB, § 87(2)(b) (BR 05) said she heard § 87(2)(b) ask Sgt. Runfola for medical attention at the 78th Precinct stationhouse. Sgt. Runfola "chuckled" and said, "Okay," but medical attention never arrived.

Sgt. Runfola (BR 12) said that he was at the desk when § 87(2)(b) and § 87(2)(b) entered the stationhouse. Sgt. Runfola could not remember which other officers, if any, were present. Sgt. Runfola had no prior knowledge of what had occurred in the park.

§ 87(2)(b) and § 87(2)(b) told Sgt. Runfola what happened at Prospect Park and he "inferred" that § 87(2)(b) was unhappy with the way the officers handled the situation in the park. Other than § 87(2)(b) coming to the stationhouse to tell the story, Sgt. Runfola could not elaborate as to what other factors led him to make this inference. Sgt. Runfola did not remember § 87(2)(b) asking for a report of any kind.

A complaint report was filed, though Sgt. Runfola could not remember which officer filled it out. Sgt. Runfola took two photographs (BR 13-14) of § 87(2)(b)'s face where she alleged she was hit, to attach to the UF-61. § 87(2)(b) did not have any visible injuries as far as Sgt. Runfola could tell and she did not complain of any pain. Sgt. Runfola did not hear § 87(2)(b) request medical attention. Sgt. Runfola did not call an ambulance and had no knowledge of another officer doing so.

After speaking to § 87(2)(b) for five to ten minutes, Sergeant Angelo Pirozzi of the 78th Precinct came over to finish speaking to § 87(2)(b) so that Sgt. Runfola could return to his desk duties.

The narrative section of the UF-61 (BR 11) noted that an "an unknown perp did slap and push § 87(2)(b) to the ground," which slightly differs from § 87(2)(b)'s testimony, as she never alleged in her phone statement or sworn statement that she was pushed to the ground. The

narrative section also stipulates that “MOS on scene determined no visible injuries.” There is no note of a request for or offer of medical attention on the report.

The EVENT Summary (BR 23) did not list any calls from the 78th Precinct stationhouse requesting an ambulance at the time § 87(2)(b) would have been there.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 01).
- Lt. Martin has been a member of service for 18 years and has been a subject in six prior CCRB complaints and 11 allegations, none of which was substantiated. § 87(2)(g)
- Det. Matos has been a member of service for 18 years and has been a subject in 5 prior CCRB complaints and 12 allegations, none of which was substantiated. § 87(2)(g)
- Sgt. Pumilia has been a member of service for 10 years and has been a subject in two prior CCRB complaints and three allegations, none of which was substantiated. § 87(2)(g)
- Sgt. Runfola has been a member of service for eight years and has been a subject in one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.

- As of July 16, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (BR 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date